BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

BENCH IV, NEW DELHI

CAA-34(ND)/2020

CONNECTED WITH

CA No. (CAA) 17/ND/2020

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

AND

In the matter of Scheme of Amalgamation

OF

EEE REALTY PRIVATE LIMITED

(Transferor Company/Petitioner No. 1)

AND

MAYUR BUILDCON PRIVATE LIMITED

(Transferor Company/ Petitioner No. 2)

WITH

GGG REALTY PRIVATE LIMITED

(Transferee Company/ Petitioner No. 3)

Order Pronounced on: 13.10.2020

CORAM:

DR. DEEPTI MUKESH

HON'BLE MEMBER (Judicial)

MS. SUMITA PURKAYASTHA

HON'BLE MEMBER (Technical)

MEMO OF PARTIES

EEE REALTY PRIVATE LIMITED

Registered office at

Shiv SushilBhawan

D-29, Vivek Vihar

New Delhi- 110095

... Transferor Company /Petitioner No. 1

AND

MAYUR BUILDCON PRIVATE LIMITED

Registered office at

Shiv SushilBhawan

D-29, Vivek Vihar

New Delhi- 110095

... Transferor Company /Petitioner No. 2

WITH

GGG REALTY PRIVATE LIMITED

Registered office at

Shiv SushilBhawan

D-29, Vivek Vihar

New Delhi- 110095

... Transferee Company/ Petitioner No.3

For the Applicant : Ms. Afnaan Siddiqi, Adv.
For the Income Tax : Ms. EashaKadian, Adv.
For the RD/OL : Mr. Shankari Mishra, Adv.
Ms. Tania Sharma, Adv

O R D E R

As per Sumita Purkayastha, Member (Technical)

1. This petition has been filed by the Petitioner Companies under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, for the purpose of the approval of the Scheme of Amalgamation of Transferor Company into Transferee Company.

2. A perusal of the petition discloses that initially the First Motion joint application seeking direction for dispensing/convening the meeting of the Equity Shareholders and Unsecured Creditors of the Petitioner Companies was filed before this Tribunal vide CA (CAA)-17(ND)2020 and based on such application moved under Sections 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, wherein the meetings of all the Petitioner Companies of the Equity Shareholders and Unsecured Creditors of the Petitioner Companies were dispensed with vide order dated 03.02.2020. In

view of absence of the Secured creditors in the Petitioner Companies the meeting was obviated.

3. Thereafter 2nd motion petition was filed vide CAA -34 (ND)/2020 within prescribed time limit and vide order dated 14.02.2020 the Petitioners were directed to carry out publication in the newspaper 'Indian Express' (English, Delhi Edition) and 'Jansatta' (Hindi, Delhi Edition) and in addition, notices were directed to be served on to the Regional Director (Northern Region), Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi and Haryana, the Income Tax Department, Official Liquidator and to the other relevant sectoral regulators.

4. It is seen from the records that all the Petitioners have filed an affidavit on 11.07.2020 affirming compliance of the order passed by the tribunal dated 14.02.2020 read along with order dated 01.06.2020. A perusal of the affidavit disclose that the Petitioners have affected the newspaper publication as directed in one issue of the 'Indian Express' (English Edition) and 'Jansatta' (Hindi Edition) both on 02.07.2020 in relation to the date of hearing of the petition.

Further, the Petitioners have also affirmed that the copy of petition have been duly served upon the Registrar of Companies, Regional Director, Northern Region and Income Tax Department, Official Liquidator, in compliance of the order and in proof of the same acknowledgment from the respective offices have also been placed on record.

5. The Regional Director filed its representation dated 10.06.2020 and submitted that as per the report of the Registrar of Companies the filling position of all the petitioner companies are upto date and no prosecution has been filed against the petitioner companies and no investigation is pending.

6. The Official Liquidator made submissions before the Adjudicating authority as recorded in the order dated 22.07.2020 that no specific objection has been raised against the approval of the scheme.

7. The Income Tax Department has filed its report on 17.09.2020 with respect to the Transferor Company No.2 M/S Mayur Buildcon Pvt Ltd and Transferee Company M/S GGG Realty Pvt Ltd along with report dated 21.09.2020 with respect to the Transferor

Company No. 1 M/S Eee Realty Pvt. Ltd. wherein no specific objection has been raised against the approval of the scheme. As per the Income Tax Department, no demand is outstanding and no proceedings are pending against the petitioner companies.

8. In the petition it has been affirmed that no proceedings for inspection, inquiry or investigation under the provisions of the Companies Act, 2013 or under the provisions of the Companies Act, 1956 are pending against the Petitioner Companies.

9. Certificates of respective statutory auditors of all the petitioner companies have been placed on record to the effect that accounting treatment proposed in the Scheme of Amalgamation is in conformity with the accounting standard notified by the Central Government as specified under the provisions of Section 133 of the Companies Act, 2013.

10. In view of the foregoing, upon considering the approval accorded by the members and creditors of all the petitioner companies to the proposed scheme, as well as the no objections filed by the regional

director, northern region, the official liquidator, and the income tax department, there appears to be no impediment in sanctioning the present scheme. Consequently, sanction is hereby granted to the scheme under section 230 & 232 of the companies act, 2013. The petitioners however remain bound to comply with the statutory requirements in accordance with law.

11. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme, will not come in the way of action being taken, albeit, in accordance with law, against any of the concerned person, director and officials of the petitioners.

12. While approving the scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes, GST, or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required

under any law.

13. **THIS TRIBUNAL ORDERS AS UNDER:**

a) That all the transferor companies shall stand dissolved without following the process of winding up; and

b) That all the property, rights and powers of all the transferor companies, be transferred without further act or deed, to the transferee company and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013, be transferred to and vets in the transferee company.

c) That all equity shares of the Transferor Companies held by the Transferee Company (either directly or through nominees) shall stand cancelled without any further application, act or deed. It is clarified that no new shares shall be Issued or payment shall be made in cash whatsoever, by the Transferee Company in lieu of shares of the Transferor Companies as the Transferor Companies are wholly owned subsidiaries of the Transferee

Company.

d) That all the liabilities and duties of the all transferor companies, be transferred without further act or deed, to the transferee company and accordingly the same shall, pursuant to Section 232 of the Act, be transferred to and become the liabilities and duties of the transferee company; and

e) That all proceeding now pending by or against the transferor company, be continued by or against the transferee company; and

f) That all the employees of all the transferor companies in service, on the date immediately preceding the date on which the scheme takes effect, i.e., the effective date shall become the employees of the transferee company on such date without any break or interruption in services and upon terms and conditions not less favorable than those subsisting in the respective transferor companies on the said date.

g) That petitioner companies shall within thirty

days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Company for registration and on such certified copy being so delivered all the transferor companies shall stand dissolved and the Registrar of Company shall place all documents relating to all the transferor company registered with him on the file kept by him in relation to the transferee company and the files relating to all the petitioner companies shall be consolidated accordingly; and

h) That any person interested shall be at liberty to apply to the tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.

Sd/-	**Sd/-**
Sumita Purkayastha	**Dr.Deepti Mukesh**
Member (T)	**Member (J)**